

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, August 21, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03553	Voje, LLC vs Carbonyx International USA Inc., et al.
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Motion by Defendant Siddhartha Gaur for Prevailing Party Fees & Costs Under California Civil Code 1717

Defendant Gaur's motion for attorney fees is GRANTED IN PART.

As an initial matter, the court finds Defendant Gaur is entitled to attorney fees, pursuant to Civil Code section 1717, as a prevailing party on Plaintiff's alter ego theory. Defendant Gaur is entitled to recover attorney fees under section 1717, because Plaintiff would have been entitled to recover its attorney fees against Defendant Gaur had it prevailed on its alleged alter ego theory of liability.

Defendant seeks to set the lodestar at \$297,630.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.)

The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the marketplace, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Defendant's counsel claims an hourly rate of \$1,100 for attorney Ravi Bendapudi, and \$900 for attorney Mansi Gaur.

The court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Nor does either counsel present evidence that such rates are reasonable for the local Merced community for the work done. Accordingly, the court finds it reasonable to set the hourly rate at \$400 /hour.

A trial court may not rubberstamp a request for attorney fees and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed. The court finds it reasonable to reduce the total attorney time for attorney Bendapudi by 51.4 hours and attorney Gaur by 62 hours. The court found considerable hours of excessive and duplicative work and reduced those hours accordingly. In addition, the court further reduced the hours based on its apportionment of the work done solely for Defendant Gaur.

This results in a lodestar of \$34,170. This represents the reasonable total billed time for attorney Bendapudi of 148.4 hours at \$400 an hour, and for attorney Gaur of 22.45 hours at \$400 an hour, apportioned at 50% for the work done on behalf of Defendant Gaur.

Accordingly, the court awards attorney fees in favor of Defendant Gaur in the amount of \$34,170.

Attorney fees and costs are to be paid within thirty (30) days of this court's order.

26CV-04195 Mariana Benitez Alvarado vs Griselda Ayala-Salazar

Order to Show Cause Re: Restraining Order

Appearance required.
